

untary interference with the subject-matter will convert a person into a trustee, must be taken with this qualification, that the interference is not such as to be *plainly* referable to some other ground than the part execution of the trust (*f*).

9. **Trustee may not act ambiguously, and then disclaim.** — If a trustee act *ambiguously* he cannot afterwards take advantage of the doubt, and say he acted not as trustee, but in some other character (*g*).

10. **Case of executorship clothed with a trust.** — If the office of executor be, by the will, clothed with certain trusts, a person named as executor who *proves* the will and thereby makes himself executor, is held to draw upon himself the obligations knit to the office of trustee. Thus, if a [*204] testator direct that *his *executors* shall get in certain outstanding effects to be applied to a particular purpose, a person cannot make himself executor by proving the will, and refuse the trust (*a*).

11. **Where the executor is also named as devisee upon trust.** — And if an *executor* be also designated trustee of the *real* estate, and he *acts as executor*, he is deemed to have accepted the entire trusteeship (*b*).

12. **Two trusts in same instrument.** — And if a person, by the same instrument, be nominated trustee of two distinct trusts, he cannot divide them: but if he accept the one, he will be taken to have accepted the other (*c*). However, these are the doctrines in a court of equity only, for at law an executor may accept that office and yet disclaim the devise to him of a legal estate (*d*).

13. **Taking custody of trust-deed not an acceptance of trust.** — Where a person was *named* as a trustee in a settlement, but he did not execute it, and declined to act, he was held

(*f*) *Stacey v. Elph*, 1 M. & K. 195; and see *Dove v. Everard*, 1 R. & M. 281; *S. C. Taml.* 376; *Lowry v. Fulton*, 9 Sim. 115.

(*g*) *Conyngham v. Conyngham*, 1 Ves. 522; *Montgomery v. Johnson*, 11 Ir. Eq. Rep. 476; see *Lowry v. Fulton*, 9 Sim. 115; *Doe v. Harris*, 16 M. & W. 517.

(*a*) *Mucklow v. Fuller*, Jac. 198; and see *Booth v. Booth*, 1 Beav. 125; *Williams v. Nixon*, 2 Beav. 472.

(*b*) *Ward v. Butler*, 2 Moll. 533.

(*c*) *Urch v. Walker*, 3 M. & Cr. 702.

(*d*) *Lord Wellesley v. Withers*, 4 Ell. & Bl. 750; and see *Bence v. Gilpin*, 3 L. R. Ex. 82.